India is a founder-member of both GATT and WTO. The WTO provides a rule based, transparent and predictable multilateral trading system. The WTO rules envisage non-discrimination in the form of National Treatment and ***Most Favoured Nation (MFN)*** treatment to India's exports in the markets of other WTO Members. National Treatment ensures that India's products once imported into the territory of other WTO Members would not be discriminated vis-à-vis the domestic products in those countries. MFN treatment principle ensures that members do not discriminate among various WTO Members. If a Member country believes that the due benefits are not accruing to it because of trade measures by another WTO Member, which are violative of WTO rules and disciplines, it may file a dispute under the Dispute Settlement Mechanism (DSM) of the WTO. There are also contingency provisions built into WTO rules, enabling member countries to take care of exigencies like balance of payment problems and situations like a surge in imports. In case of unfair trade practices causing injury to the domestic producers, there are provisions to impose Anti-Dumping or Countervailing duties as provided for in the Anti-Dumping Agreement and the Subsidies and Countervailing Measures Agreement.

WTO Membership

The present strength of WTO membership[18] is 159. Against the backdrop of the challenging world economic climate *four countries* acceded to the WTO at the 8th Ministerial Conference, Geneva in December 2011 – the Russian Federation, Samoa, Montenegro and Vanuatu. Russian Federation joined it after an 18-year accession process – it applied to join the WTO in 1993 – then they entered a period of 18 years of bilateral negotiations with GATT/WTO members concerning goods and services and various systemic obligations. Significant divergence of views between Russia and the EU, US and Georgia respectively were the source of repeated setbacks in the accession process.

WTO MINISTERIAL CONFERENCES